

Cause No. _____
(1)

In the Matter of

§ In the

§ _____
(2)

Maria-Alejandra O'Shaughnessy-Whitfield
(3)

§ _____ County, Texas
(4)

Petition for Order of Nondisclosure **Under Section 411.0725**

Maria-Alejandra O'Shaughnessy-Whitfield (5) (hereinafter "Petitioner") respectfully petitions the court for an order of nondisclosure under Government Code Section 411.0725 for the offense detailed below.

1. The Underlying Order and Order of Discharge and Dismissal

Petitioner plead guilty or nolo contendere to the offense of _____ (6), a _____ (7), in Criminal Cause No. _____ (8) in this court on _____. (9)

Petitioner was placed on deferred adjudication community supervision (hereinafter "deferred adjudication") for the offense. The period of deferred adjudication started on _____ (10) and ended on _____ (11). A copy of the judgment or order placing Petitioner on deferred adjudication _____ (12) attached.

Upon completion of deferred adjudication, the court discharged and dismissed the proceedings against Petitioner. A copy of the discharge and dismissal _____ (13)

attached to this petition. The discharge and dismissal occurred on _____ • (14)

2. Petitioner Satisfies the Requirements of Government Code Section 411.0725

Petitioner satisfies the requirements of Section 411.0725, Gov't Code, in that Petitioner does not qualify for an order of nondisclosure under Section 411.072, Gov't Code, because (check all that apply): (15)

☐ A. Petitioner was placed on deferred adjudication for a disqualifying misdemeanor, as the misdemeanor is an offense under one of the following Chapters of the Penal Code:

- 20 (Kidnapping, Unlawful Restraint, Smuggling Of Persons),
- 21 (Sexual Offenses),
- 22 (Assaultive Offenses),
- 25 (Offenses Against The Family),
- 42 (Disorderly Conduct And Related Offenses),
- 43 (Public Indecency Offenses),
- 46 (Weapons Offenses), or
- 71 (Organized Crime Offenses).

☐ B. The court made an affirmative finding that it is not in the best interest of justice that Petitioner receive an automatic order of nondisclosure under Section 411.072 and filed that finding with the papers in Petitioner's case.

☐ C. Petitioner's offense is a felony.

☐ D. Petitioner has been previously convicted of or placed on deferred adjudication for an offense other than a traffic offense punishable by fine

only. (A list of offenses and dates of Petitioner's previous convictions and deferred adjudications _____ (16) attached to the petition.)

☐ E. Petitioner received a discharge and dismissal prior to September 1, 2017.

Petitioner also satisfies the requirements of Section 411.0725 in that: (1) Petitioner received a discharge and dismissal for the offense for which the order is requested; and (2) the offense for which the order is requested is not an offense under Penal Code Section 49.04 or 49.06 for driving or boating while intoxicated, respectively.

Finally, Petitioner satisfies the requirements of Section 411.0725 in that Petitioner waited the requisite time, as indicated below, before filing this petition. (17)

☐ On or after the fifth anniversary of the discharge and dismissal if the offense for which the order of nondisclosure is requested is a felony.

☐ On or after the second anniversary of the discharge and dismissal if the offense for which the order of nondisclosure is requested is a misdemeanor offense under Chapter 20, 21, 22, 25, 42, 43, or 46 of the Penal Code.

☐ On or after the dismissal and discharge if the offense for which the order of nondisclosure is requested is a misdemeanor offense but not a misdemeanor offense under Chapter 20, 21, 22, 25, 42, 43, or 46 of the Penal Code.

3. Petitioner Satisfies the Requirements of Section 411.074, Gov't Code

Petitioner satisfies the requirements of Section 411.074, Gov't Code, in that:

- During the period after the court placed Petitioner on deferred adjudication, and during any applicable waiting period (as indicated in Section 2 above) following the discharge and dismissal, Petitioner was

not convicted of or placed on deferred adjudication for any offense other than a traffic offense punishable by fine only;

- Petitioner was not and has not ever been previously convicted of or placed on deferred adjudication for any of the following:

(A) an offense requiring registration as a sex offender under Code of Criminal Procedure Chapter 62;

(B) an offense under Penal Code Section 20.04 (Aggravated Kidnapping);

(C) an offense under any of the following sections of the Penal Code:

- 19.02 (Murder);
- 19.03 (Capital Murder);
- 20A.02 (Trafficking of Persons);
- 20A.03 (Continuous Trafficking of Persons);
- 22.04 (Injury to a Child, Elderly Individual, or Disabled Individual);
- 22.041 (Abandoning or Endangering A Child);
- 25.07 (Violation of Court Orders or Conditions of Bond in a family violence, child abuse or neglect, sexual assault or abuse, indecent assault, stalking, or trafficking case);
- 25.072 (Repeated Violations of Certain Court Orders or Conditions of Bond in a family violence, child abuse or neglect, sexual assault or abuse, indecent assault, stalking, or trafficking case); or
- 42.072 (Stalking); or

(D)any other offense involving family violence, as defined by
Family Code Section 71.004; and

- The court has not made an affirmative finding that the offense for which the order is requested involved family violence, as defined by Family Code Section 71.004.

4. Petitioner is Entitled to File a Petition for an Order of Nondisclosure Under Section 411.0725, Gov't Code

A person is entitled to file a petition for an order of nondisclosure under Government Code Section 411.0725 if the person satisfies the requirements of Sections 411.0725 and 411.074 of the Code.

As indicated above, Petitioner satisfies the requirements of both sections.

5. Issuance of an Order of Nondisclosure is in the Best Interest of Justice

Issuance of an order is in the best interest of justice.

6. The Fee to File the Petition has been Paid or Otherwise Satisfied

Filing fees and court costs are required upon filing this petition. Alternatively, a petitioner may submit a *Statement of Inability to Afford Payment of Court Costs* if the petitioner is unable to pay the required fees and costs. Petitioner has included (18)

- ☐ the required filing fees and court costs.
- ☐ a Statement of Inability to Afford Payment of Court Costs.

7. Prayer for Relief

Petitioner asks the Court to grant Petitioner's request for an order of nondisclosure under Government Code Section 411.0725.

Respectfully submitted,

Signature (19)

Maria-Alejandra O'Shaughnessy-Whitfield

Printed Name (20)

Address (21)

City, State, Zip (22)

(361) 555-0199 ext. 4417

Telephone Number (23)

Cause No. _____

In the Matter of

§ In the

§ _____

Maria-Alejandra O'Shaughnessy-Whitfield

§ _____ County, Texas

ORDER OF NONDISCLOSURE

On _____, the Court considered Petitioner's petition for an order of nondisclosure.

The State was given notice of the petition and an opportunity to request a hearing.

The State

☐

requested a hearing.

☐

did not request a hearing.

The Court

☐

conducted a hearing on _____.

☐

did not conduct a hearing.

After consideration and a hearing, if a hearing was held, the Court **FINDS** that Petitioner is entitled to file a petition for an order of nondisclosure under the section of

the Government Code indicated below and issuance of an order of nondisclosure is in the best interest of justice.

- ☐ Texas Government Code Section 411.0725
- ☐ Texas Government Code Section 411.073
- ☐ Texas Government Code Section 411.0735

Accordingly, **IT IS HEREBY ORDERED** that criminal justice agencies are prohibited from disclosing to the public criminal history record information related to the offense(s) of _____ in Criminal Cause No. _____ in _____ County, Texas.

IT IS FURTHER ORDERED that the criminal history record information pertaining to the arrest and prosecution of Petitioner for the above-referenced offense(s), as reflected in the above-referenced criminal cause number, shall be sealed and disclosed only to individuals and agencies listed in Government Code Section 411.076(a).

IT IS FURTHER ORDERED that the court clerk shall send all relevant criminal history record information contained in this order or a copy of this order to the Crime Records Service of the Texas Department of Public Safety (hereinafter "DPS") by certified mail (return receipt requested), secure electronic mail, electronic transmission, or facsimile transmission no later than the 15th business day after the order issues, in accordance with Government Code Section 411.075(a).

IT IS FURTHER ORDERED that DPS shall seal the criminal history record information that is the subject of this order and forward the relevant information contained in this

order or a copy of this order to all state and federal agencies listed in Government Code Section 411.075(b) by certified mail (return receipt requested), secure electronic mail, electronic transmission, or facsimile transmission no later than 10 business days after receiving information contained in this order or a copy of this order from the court clerk, in accordance with Government Code Section 411.075(b).

IT IS FURTHER ORDERED that a person, agency, or entity shall seal any criminal history record information that is the subject of this order and maintained by the person, agency, or entity no later than 30 business days after the person, agency, or entity receives relevant information contained in this order or a copy of this order from DPS, a court clerk, or the person who is the subject of the order, in accordance with Government Code Section 411.075(d).

IT IS FURTHER ORDERED that the clerk shall seal all court records containing information that is the subject of this order as soon as practicable after the clerk sends a copy of this order or all relevant criminal history record information contained in this order to DPS, in accordance with Government Code Section 411.076(b).

Signed on _____.

Judge Presiding

Court/County

PROOF THAT THE DISTRICT ATTORNEY RECEIVED A COPY OF THE PETITION

READ THIS FIRST: YOU MAY NOT NEED THIS PAGE.

Government Code Sec. 411.0745(e) makes THE COURT responsible for giving the State notice of your petition and an opportunity to request a hearing, and the committed record states that you should not be charged for that notice. You are not the one who serves the State.

OCA instructions nonetheless direct a petitioner to show proof that the district attorney received a copy of the petition, and some counties expect it. ASK THE CLERK OF THE COURT YOU ARE FILING IN whether that county wants this. If it does not, leave this page out.

Cause No.:

Court and county:

PROOF THAT THE DISTRICT ATTORNEY RECEIVED A COPY

I, Maria-Alejandra O'Shaughnessy-Whitfield, state that a copy of my Petition for an Order of Nondisclosure under Government Code Sec. 411.0725 was delivered to the district attorney as follows:

District attorney - name and office:

.....

Address:

.....

How it was delivered:

Date the district attorney received it:

.....

Maria-Alejandra O'Shaughnessy-Whitfield

Date:

(You sign and date this when the copy has actually been delivered. Nothing on this page is signed or dated for you, and no district attorney's name or address is printed here: the platform holds none for any Texas county and does not guess one.)

Route:

obligation:track-pathway:TX:tx_nd_deferred_other:petitioned-nondisclosure-after-completed-deferred-adjudication-411-0725

NOTICE: THIS DOCUMENT CONTAINS SENSITIVE DATA
AVISO: ESTE DOCUMENTO CONTIENE INFORMACIÓN
CONFIDENCIAL



Statement of Inability to Afford Payment of Court Costs or an Appeal Bond

Declaración sobre Incapacidad de Pago de Costas de Tribunal o de una Fianza de Apelación

Cause Number
Número de Caso

The Clerk's office will fill in the Cause Number when you file this form.

El Secretario del Tribunal anotará el Número de Caso cuando usted presente este formulario.

v.

Copy information listed at the top left of the petition here.

Copie aquí la información ubicada en la parte superior izquierda del escrito de la demanda.

Copy information listed at the top right of the petition here.

Copie aquí la información ubicada en la parte superior derecha del escrito de la demanda.

Court Number
Número del Tribunal

_____, Texas
County
Condado

- ☐ District Court
Tribunal de Distrito
- ☐ County Court
Tribunal del Condado
- ☐ County Court at Law
Tribunal Estatutario
- ☐ Justice Court
Juzgado de Paz
- ☐ Probate Court
Juzgado Sucesorio

1. Your Information / Su Información

- My full legal name is / Mi nombre legal completo es
Maria-Alejandra O'Shaughnessy-Whitfield

First Middle Last / Nombre de Pila Segundo Nombre Apellido

- My date of birth is / Mi fecha de nacimiento es
1972-12-31

Month Day Year / Mes Día Año

- My address is / Mi dirección es

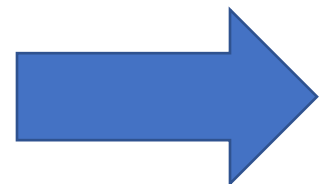
Home / Domicilio 1188 Upper Notch Crossing Road, Apartment 14B, Corpus Christi, Texas 78418-2214

Mailing / Dirección Postal

- My phone number / Mi número telefónico (361) 555-0199 ext. 4417

- My email I check often / Mi correo electrónico que reviso con frecuencia
maria.alejandra.oshaughnessy.whitfield@longmailexample.org

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Pase a la siguiente página

2. About My Dependents / Mis Dependientes

"The people who depend on me financially are listed below." **Use initials only for children under 18.** If needed, attach a separate piece of paper to list more dependents.

"Las personas a continuación dependen económicamente de mí." **Use iniciales para los menores de 18 años** y, si es necesario, anexe una hoja por separado para enumerar a todos sus dependientes.

Name Nombre	Age Edad	Relationship to me Parentesco Conmigo

3. Are you represented by Legal Aid? ¿Está siendo representado por alguna entidad de asistencia legal?

Check only one box. Seleccione solo una casilla.

☐ I am being represented in this case for free by an attorney who works for a legal aid provider or who received my case through a legal aid provider. I have attached the certificate the legal aid provider gave me as "Exhibit: Legal Aid Certificate."

Me está representando gratuitamente un abogado que trabaja para una entidad de asistencia legal o que recibió mi caso de una entidad de asistencia legal. El certificado que la entidad de asistencia legal me entregó lo adjunto bajo el título, "Anexo: Certificado de Asistencia Legal."

or / o

☐ I am not represented by legal aid.

No me está representando ninguna entidad de asistencia legal.



4. Public Benefits / Beneficios de Asistencia Pública

- Do you or any of your dependents receive public benefits?
¿Recibe usted o sus dependientes beneficios de asistencia pública?

☐ Yes / *Sí*

☐ No / *No*

- If you answered yes, check all that apply and attach proof to this form, such as a copy of an eligibility form or check.

Si respondió con un Sí, marque todas las casillas que apliquen y adjunte a este formulario comprobantes, tales como una copia de la carta autorizando que reciba estos beneficios o una copia del cheque que recibe.

☐ Food stamps/SNAP
Cupones de comida/SNAP

☐ TANF

☐ Medicaid

☐ CHIP

☐ SSI/SSDI

☐ WIC

☐ Lifeline

☐ Public Housing or Section 8 Housing
Asistencia de Vivienda / Programa de Vivienda bajo Sección 8

☐ Low-Income Home Energy Assistance
Asistencia con Energía Eléctrica

☐ Community Care via HHS
Ayuda Comunitaria bajo HHS

☐ LIS in Medicare ("Extra Help")
Subsidio Adicional de Medicare bajo el Programa LIS

☐ Needs-based VA Pension
Pensión para Veteranos de Guerra en función a necesidades

☐ Child Care Assistance under Child Care and Development Block Grant
Asistencia con Guardería bajo el Programa CCDBG

☐ County Assistance, County Health Care, or General Assistance (GA)
Asistencia del Condado, Asistencia Médica del Condado, o Asistencia General (GA)

☐ Other / *Otros beneficios*

☐ Other / *Otros beneficios*



5. What are your monthly income sources? ¿Cuáles son sus fuentes de ingresos mensuales?

➤ My **take-home** pay is \$_____ in monthly wages.

Mi **pago neto** es \$_____ en sueldo mensual.

➤ I work as a _____ (your job title) for _____ (your employer).

Yo trabajo como _____ (título de su puesto) para _____ (compañía o jefe).

➤ \$_____ is my total **monthly** income / son mis ingresos totales **al mes**.

These are my income sources. **Estas son mis fuentes de ingresos.**

➤ \$_____ in unemployment / en beneficios de desempleo.

I have been unemployed since _____ (date).

He estado desempleado desde _____ (indique fecha).

➤ \$_____ in public benefits / en beneficios de Asistencia Pública.

➤ \$_____ from people in my household other than my spouse / de ingresos de otras personas en mi hogar que no son de mi cónyuge.

➤ \$_____ from retirement or pension / de jubilación o pensión.

➤ \$_____ from tips or bonus / de propinas o bonos.

➤ \$_____ from disability / de discapacidad.

➤ \$_____ from worker's comp / de compensación al trabajador.

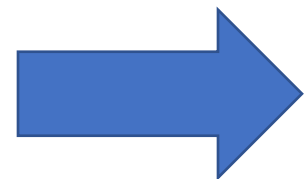
➤ \$_____ from social security / de seguro social.



- \$_____ from military housing / de vivienda militar.
- \$_____ from dividends, interest, or royalties / de dividendos, intereses, o regalías.
- \$_____ from child or spousal support / de manutención de menores o manutención conyugal recibida.
- Answer only if your spouse is not your opponent. Responda tan sólo si su ccónyuge no es parte contraria en esta causa legal.\$_____ from my spouse's income / de ingresos de mi cónyuge.
- \$_____ from other jobs/sources of income / de otros trabajos/ fuentes de ingresos.

Describe / describa:

Go to next page



Pase a la siguiente página

6. What is the value of your assets or property? ¿Cuál es el valor de sus bienes o propiedades?

My property includes: Mis bienes incluyen:	Value / Valor The value is the amount the item would sell for less the amount you still owe on it, if anything. El valor de sus bienes es la cantidad por la que la propiedad o pertenencia se vendería, menos el monto que aún se adeuda, si lo hubiera.
➤ Cash Dinero en efectivo	\$
➤ Bank accounts, other financial assets Cuentas bancarias, otros bienes financieros	
	\$
	\$
	\$
➤ Cars and boats (make and year) Automóviles, lanchas (modelo y año)	
	\$
	\$
	\$
➤ Other property like jewelry, stocks, land, a second house. (Do not list your homestead.) Otros bienes como joyas, acciones, terrenos, una segunda casa. (No indique su hogar familiar.)	
	\$
	\$
	\$
Total Value of Property Valor Total de Sus Bienes	\$



**7. What are your monthly expenses that are not deducted from your paycheck?
¿Cuáles son sus gastos mensuales que no son descontados de su cheque de sueldo?**

My monthly expenses are: Mis gastos mensuales son:	Amount Cantidad
➤ Rent/house payments; maintenance Alquiler/hipoteca; mantenimiento de casa	\$
➤ Food and household supplies Alimentos y artículos para el hogar	\$
➤ Utilities and telephone Luz, gas, agua y teléfono	\$
➤ Clothing and laundry Ropa y lavado de ropa	\$
➤ Medical and dental expenses Gastos médicos y dentales	\$
➤ Insurance (life, health, auto, etc.) Seguros (de vida, médico, de automóvil etc.)	\$
➤ School and childcare Escuelas y guarderías	\$
➤ Transportation, auto repair, gas Transportación, reparaciones de automóviles, gasolina	\$
➤ Child/Spousal support Manutención a Menores/Manutención Conyugal	\$
➤ Debt payments to (list): Pagos por deudas hechas a (indíquelos):	
	\$
	\$
➤ Wages withheld by court order Sueldo retenido por orden judicial	\$
➤ Other expenses (list): Otros gastos (indíquelos):	
	\$
	\$
Total Monthly Expenses Gastos Totales Mensuales	\$



8. Are there debts or other facts explaining your financial situation?
¿Hay deudas u otros factores que expliquen su situación económica?

My debts include (list debt and amount owed):

Mis duedas incluyen (indique deuda y la cantidad que debe):

	\$
	\$
	\$
	\$
	\$

If you want the court to consider other facts, such as unusual medical expenses, family emergencies, etc., attach another page to this form labeled "Exhibit: Additional Supporting Facts."

Si usted desea que el tribunal considere otros factores, tales como gastos médicos excepcionales, emergencias familiares, etc., adjunte al formulario otra hoja con esta información y bajo el título, "Anexo: Información Adicional de Apoyo."

9. Ability to Pay Court Costs. Declaración sobre su Habilidad de Pagar Costas de Tribunal

Check only one box. Seleccione tan solo una casilla.

- ☐ I cannot afford to pay court costs. No puedo pagar las costas de tribunal.
- ☐ I cannot furnish an appeal bond or pay a cash deposit to appeal a justice court decision, and I cannot afford to pay court costs.

No puedo aportar una fianza de apelación ni pagar un depósito en efectivo para apelar la decisión judicial de un magistrado, y no puedo pagar costas de tribunal.

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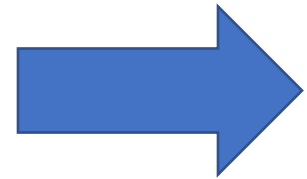
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10. Declaration/Affidavit. Declaración Escrita Bajo Juramento.

Fill out **only one** box. If you fill out the Declaration, you will not need to sign the form in front of a notary public. If you do not want to list your address for privacy or safety concerns, take the form and photo identification, and fill out the Affidavit box in front of a notary public.

Llene tan **solo una** opción. Si usted llena la Declaración, no necesitará firmar el formulario ante un notario. Si usted no quiere que aparezca su domicilio en el documento para conservar su privacidad o por motivos de su seguridad, lleve el formulario y una identificación con fotografía y llene la sección de la Declaración Escrita Bajo Juramento ante un Notario.

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Pase a la siguiente página

Option 1 / Opción 1

Declaration: I declare under penalty of perjury that the foregoing is true and correct.

Declaración: Yo declaro bajo pena de perjurio que la información a continuación es correcta y verdadera.

➤ My name is / Mi nombre es

Maria-Alejandra O'Shaughnessy-Whitfield

➤ My date of birth is / Mi fecha de nacimiento es

____/____/____

➤ My address is / Mi domicilio es

1188 Upper Notch Crossing Road, Apartment 14B, Corpus Christi, Texas 78418-2214

Street, city, zip, country

Calle y número, ciudad, estado, código postal, país

➤

Signature

Firma

➤

Date (month, day, year)

Fecha (mes, día, año)

➤

County, state

Condado, estado

Go to next page



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Option 2 / Opción 2

Affidavit: I swear under penalty of perjury that the foregoing is true and correct.

Declaración Escrita Bajo Juramento: Yo juro bajo pena de perjurio, que lo que precede es correcto y verdadero.

You fill out this section.

Usted llena esta sección.

➤ Maria-Alejandra O'Shaughnessy-Whitfield

Your printed name

Su nombre en letra de molde

➤ _____
Your signature
Su firma

The notary fills out this section.

El Notario llena esta sección.

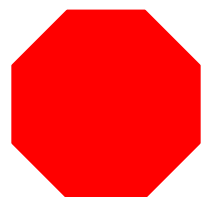
➤ _____

Subscribed before me this day of

Juramentado y suscrito ante mí el día de hoy del mes de

_____, 20____

NOTARY
NOTARIO



FILING INSTRUCTIONS, WHAT IT COSTS, AND WHAT THE ORDER DOES

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

BEFORE ANYTHING ELSE: RULE OUT SECTION 411.072, BECAUSE IT IS AUTOMATIC AND IT IS NEARLY FREE.

Section 411.0725 is the section for a person who does NOT qualify for the automatic order under Government Code Sec. 411.072. Under Sec. 411.072 the court issues the order ITSELF after a discharge and dismissal for a nonviolent first-offence misdemeanour: there is no petition, there is no civil filing fee, and the only money is a \$28 fee to the clerk. Under this section you file a petition and pay a county civil filing fee that OCA describes as typically about \$280.

So before you file anything: **PULL YOUR TEXAS DPS CRIMINAL HISTORY RECORD** and see whether the offence is already sealed. If the automatic order already issued, there is nothing to file and nothing to pay for. If it did not issue but you were entitled to it, that is a different route again and this is not it. The committed record records that this has not been ruled out as a point where self-help ends.

PARAGRAPH 2 IS WHERE YOU SAY WHY 411.072 IS NOT AVAILABLE. The petition prints five reasons - A to E - and asks you to **CHECK ALL THAT APPLY**. None of them is checked in this packet, because each is a sworn statement about your own record: whether your misdemeanour falls in Penal Code Chapter 20, 21, 22, 25, 42, 43, 46 or 71; whether the court filed a finding that an automatic order is not in the best interest of justice; whether the offence is a felony; whether you have any previous conviction or deferred adjudication other than a fine-only traffic offence; and whether your discharge and dismissal was before 1 September 2017.

WHERE THIS IS FILED. File the petition with the **CLERK OF THE COURT THAT SENTENCED YOU** or placed you on deferred adjudication community supervision. That clerk forwards it to the court. This is NOT the county of arrest, and the committed record calls that the single biggest venue difference from expunction - if you are pursuing both, they may be two different courts. Under Government Code Sec. 411.0745(a) you may file in person, electronically or by mail. OCA instructions say that in most courts a proposed order must be submitted with the petition, which is why the proposed order is in this packet.

ONE ORDER FORM, THREE SECTIONS. The proposed order in this packet is the state's model order for Secs. 411.0725, 411.073 AND 411.0735 together, and its page 2 carries three boxes for the court to indicate which one applies. Yours is 411.0725. **THE BOXES ARE NOT MARKED IN THIS PACKET** and that is deliberate: the sentence above them says the **COURT FINDS** the petitioner entitled to file under the section indicated below, so marking one would assert a finding no court has made.

ONE OFFENCE, ONE ORDER. An order of nondisclosure applies to a single offence. If you want more than one offence sealed, that takes more than one order.

HOW LONG YOU WAIT - AND THERE ARE THREE ANSWERS. All three run from the DATE OF THE DISCHARGE AND DISMISSAL, and which one is yours is decided by your offence:

- a MISDEMEANOUR that is NOT under Penal Code Chapter 20, 21, 22, 25, 42, 43 or 46: you may file ON the discharge and dismissal. There is no waiting period at all.
- a MISDEMEANOUR under one of those chapters: the SECOND anniversary of the discharge and dismissal.
- a FELONY: the FIFTH anniversary of the discharge and dismissal.

Paragraph 2 of the petition has a three-way control where you mark which one you relied on. It is not marked for you, because it turns on the grade and chapter of your own offence and only the judgment answers that. Take the discharge and dismissal date from the court's own order rather than from memory.

A CONDITION THAT RUNS THROUGH THE WHOLE PERIOD. Under Sec. 411.074 you must not have been convicted of or placed on deferred adjudication for any offence other than a fine-only traffic offence during the deferred adjudication and during any applicable waiting period. The petition asserts that about you.

WHAT IT COSTS - AND THE NUMBER YOU SHOULD IGNORE.

Government Code Sec. 411.0745(b) says the petition must be accompanied by payment of a fee THAT GENERALLY APPLIES TO THE FILING OF A CIVIL CASE. Read carefully, that subsection sets the TYPE of fee, not an amount: there is no flat statutory figure for a petition-based nondisclosure, and your county's civil filing fee schedule governs. OCA instructions describe the total as TYPICALLY ABOUT \$280, VARYING BY COUNTY, and tell you to call the clerk.

SO CALL THE CLERK OF THE COURT YOU ARE FILING IN and ask what the civil filing fee is there, before you go.

NOW THE NUMBER TO IGNORE: \$28. You may have read that an order of nondisclosure costs \$28. THAT FIGURE IS NOT YOURS ON THIS ROUTE. It belongs only to the no-petition route under Government Code Sec. 411.072(c) - the automatic route this section exists for people who fall outside - and the committed record states in terms that it is not a filing fee at all. Do not arrive at the clerk's window with \$28.

IF YOU CANNOT AFFORD IT. Paragraph 6 of the petition lets you choose between paying the fees and costs and filing a STATEMENT OF INABILITY TO AFFORD PAYMENT OF COURT COSTS under Texas Rule of Civil Procedure 145. That Statement is in this packet, on the statewide bilingual form approved by the Supreme Court of Texas in Misc. Docket No. 22-9090. Rule 145 requires the clerk to make that form available WITHOUT CHARGE AND WITHOUT YOUR HAVING TO ASK, so you are entitled to it whether or not you use the copy here.

The Statement is sworn under penalty of perjury. Fill it from your own records - pay statements, benefit letters, bills - and not from memory. Nothing on it is filled in for you except your own name, date of birth, address, telephone number and email, because the platform holds no financial fact about anyone.

PAGE 11 OF THE STATEMENT ASKS FOR YOUR DATE OF BIRTH AGAIN, in three boxes under 'My date of birth is / Mi fecha de nacimiento es', and those three boxes are left for you to write. Copy them from page 2 of the same Statement. They are not filled in for a mechanical reason rather than a legal one: on this form the month box is one form field with the notary's month on page 12, so filling your birth month would also write in the notary's blank.

WHO GIVES NOTICE TO THE STATE - AND IT IS NOT YOU. Under Sec. 411.0745(e), on receipt of your petition THE COURT provides notice to the State and an opportunity for a hearing. The committed record states that you should not be charged for that notice. OCA instructions do direct a petitioner to show proof that the district attorney received a copy, and some counties expect it, which is why this packet includes a proof-of-delivery page marked CONDITIONAL. Ask the clerk whether that county wants it.

WILL THERE BE A HEARING? A hearing is required UNLESS the State does not request one before the 45th day after receiving notice AND the court finds that you are entitled to file the petition and that issuing the order is in the best interest of justice.

NOTARIZATION. Subchapter E-1 does not require the petition to be notarized. County practice may differ. Ask the clerk.

WHAT THE ORDER ACTUALLY DOES - AND WHAT IT DOES NOT. Nondisclosure is SEALING, not expunction. The order prohibits criminal justice agencies from disclosing the record to the public, and the information is still disclosed to the individuals and agencies listed in Government Code Sec. 411.076(a). The clerk sends the order to the DPS Crime Records Service; DPS forwards it to the agencies in Sec. 411.075(b); and any person, agency or entity holding the information seals it no later than 30 business days after receiving it. The record is not destroyed and you should never say it does not exist.

WHEN TO STOP AND GET HELP INSTEAD.

The committed track registry for this route records these as the points where self-help ends, in its own words:

- Any family violence finding or family violence allegation anywhere in the record.
- Any prior conviction or deferred adjudication other than a fine-only traffic offence, where the target section carries a first-time-offender condition.
- The prosecutor opposes the petition or requests a hearing.
- Any dispute about whether the sentence, fines, costs or restitution were completed.
- Immigration consequences.
- Any question whether the offence was violent or sexual in nature, which is a court determination under Gov't Code 411.0735.
- The person may qualify under Gov't Code 411.072 and that has not been ruled out.

This packet adds four more of its own, taken from the assertions the forms in it actually make:

- You were CONVICTED rather than placed on deferred adjudication, or you never received a discharge and dismissal. Section 411.0725 reaches a completed deferred adjudication only.
- The offence is driving while intoxicated under Penal Code Sec. 49.04 or boating while intoxicated under Sec. 49.06. Those route to Sec. 411.0726 and the petition swears they are not yours.
- You have ever been convicted of, or placed on deferred adjudication for, any offence on the Sec. 411.074 list the petition prints on its pages 3 and 4 - a Chapter 62 registerable offence, aggravated kidnapping, murder, capital murder, trafficking or continuous trafficking of persons, injury to or abandoning or endangering a child, elderly or disabled individual, violation or repeated violation of certain court orders, stalking, or any other offence involving family violence.
- A court made an affirmative finding that the offence for which the order is requested involved family violence.

DOCUMENTS TO GET FIRST, AND WHO HAS THEM.

- Your Texas DPS criminal history record - the Texas Department of Public Safety Crime Records Service, following DPS form CR-63. It establishes the disposition, shows whether an automatic order already sealed the offence, and shows every other conviction and deferred adjudication the petition asks you to swear about.
- The judgment or order placing you on deferred adjudication, and the order of discharge and dismissal - the clerk of the court that placed you on deferred adjudication. Between them they carry the offence wording, the cause number, the plea date, the start and end of the deferred adjudication and the discharge and dismissal date every waiting period runs from.

Route:

obligation:track-pathway:TX:tx_nd_deferred_other:petitioned-nondisclosure-after-completed-deferred-adjudication-411-0725